

The Cooperative Model Town Society	Versus	The Punjab Labour Appellate Tribunal, etc.
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05.3.2019 Muhammad Ejaz Jamal, Advocate for the petitioner.
Mr. Tanveer Ahmad, Advocate for respondent No.3

2. Facts from which this petition stems are that respondent No.3 was an employee of the petitioner working as Rent Clerk in the Revenue Department. There were allegations against him that he received two cheques from contractor M/s. Asif and Company drawn in favor of petitioner, and deposited them in petitioner's account. These cheques were dishonored. Allegedly to protect the contractor's skin from criminal prosecution, the respondent No.3 deliberately misplaced them and falsely reported that the amount had been credited to petitioner's account. When alleged misconduct came to surface, respondent No.3 was suspended and issued charge-sheet. He failed to participate in the ensuing inquiry proceedings, was found guilty as charged and was dismissed from service. Respondent No.3 statedly challenged the termination before Punjab Labor Court No.2, Lahore (**respondent No.2**) which was resisted. Respondent No. 3 led his evidence. In its evidence the

petitioner society applied for the summoning of Farrukh Ahmad Awan, Ex-Secretary of the petitioner society as a witness but application was dismissed by respondent No.2. A revision petition was filed before Punjab Labor Appellate Tribunal, Lahore (**respondent No.1**) but that too got dismissed. Both these orders are subject-matter of present writ petition.

3. Learned counsel for the petitioner society submitted that the application to summon the witness was incorrectly declined, the provisions of C.P.C. were not *stricto sensu* applicable to the labor cases and that the witness who was ex-secretary of the society was an important witness, and ought to have been allowed to be produced through the process of court.

4. Learned counsel for respondent No.3 controverted these contentions and submitted that evidence had already been produced by the petitioner, the person intended to be summoned had nothing to depose as he was simply custodian of record, which had already been produced; and that the application was misconceived and was rightly declined.

5. The points raised in the course of hearing by the learned counsel for the parties have been considered with reference to documents appended with the writ petition.

6. As discernable from the facts incorporated in the pleadings, respondent No.3 was an ex-employee of petitioner, who was issued show-cause notice and charge-sheeted on the allegation that he had collected two dishonored cheques from the bank, withheld this information from the employer, falsely reported that the payment against the said cheques had been credited in

petitioner's account and all this was done with *mala fide* to save the contractor from criminal liability. The respondent No. 3 was thereafter removed from service in result of the inquiry, who filed a petition under section 42 of *Punjab Industrial Relations Act, 2010*. The plea raised to seek interference by the Punjab Labor Court was that no inquiry was conducted, the show-cause notice which was served contained unfounded and concocted allegations, the respondent No.3 was dismissed from service vide order dated 17.4.2010, which order being without inquiry and without hearing respondent No. 3, could not sustain; and that no major penalty could be imposed without impartial inquiry. Additionally, it was claimed that no financial loss occurred to the petitioner, the cheques had no relevance with respondent No. 3, there was no act of inefficiency, misconduct and corruption against respondent No. 3 who performed the duty according to rules and could not be removed from service in the manner as done.

7. In response they claimed that inquiry was indeed conducted, but it was alleged that the petitioner did not deliberately participate in the proceedings and that there was collusion between respondent No. 3 and the contractor and that his credit entries were fraudulent. It was admitted that on 08.8.2009 inquiry committee was constituted; one of its members expressed his non-availability to conduct the inquiry and therefore the inquiry was conducted by another committee comprising M/s. Zafar Mehdi and Sardar Ayyaz. It was claimed that respondent No. 3 stayed away from the inquiry proceedings and despite being offered opportunity he failed to avail it by his own choice.

8. It is thus manifest that contentious questions had been raised in grievance petition including as to whether

respondent No. 3 had committed acts of misconduct and/or committed act of inefficiency or deliberately made fraudulent entries of credit notwithstanding the fact that cheques were dishonored, and that whether he made a false report and, if so, its legal consequences including penalty to be imposed. The parties are not at issue as to the allegations made against each other, the plea of respondent No. 3 is to the effect that he was not given opportunity of hearing while the petitioner's stance is that respondent No.3 was allowed this opportunity but he opted not to participate by his own choice and could not grumble. In the course of arguments, it was alleged that the inquiry was already completed, all the documents pertaining to inquiry were already tendered in the evidence and produced on record and on analysis of the same, a final verdict was to be rendered by the court.

9. In this backdrop when the application for summoning Farrukh Ahmad Awan, ex-secretary of the petitioner is perused, it is observed that the application is completely silent as to the purpose of his deposition and it is vaguely claimed that the witness could not be produced and therefore, he shall be summoned. As to what fact is to be proved from him, what special information the witness possesses, in what context his production is required, the application is silent. In this backdrop respondent No.2 dismissed the application observing that no reason of non-filing of list of witnesses was given; the application did not mention any specific purpose or fact to be proved through the witness requested to be summoned; and what the petitioner intended to prove through him. With these observations the application was declined.

10. In revision respondent No.1 observed that the allegations of misconduct were in respect of two dishonored cheques and collusion of respondent No.3 with the contractor resulting in filing of false credit report could be proved by producing either documentary evidence or through the statement of the office bearer of the petitioner; and that there was no cogent reason mentioned as to why Farrukh Ahmad Awan, Ex-Secretary was being requested to be summoned. It was observed that the petitioner could not show that without the statement of ex-Secretary the inquiry proceedings could not be completed. The revision petition was therefore dismissed and the order of respondent No.2 was affirmed.

11. As noted supra, the charges against respondent No.3 were to the effect that he collected the dishonored cheques, did not correctly report the fact to the petitioner, withheld the information, submitted a false report showing the amount of cheques having been credited in the petitioner's account and all this was done in league with contractor to save the latter from criminal prosecution. According to petitioner's own reply to the petition under section 42 of the Punjab Industrial Relations Act 2010, the inquiry committee comprising Zafar Mehdi Zafar and Sardar Ayyaz conducted the inquiry and submitted the inquiry report. Being so, the evidence of member of the inquiry committee or the record of the petitioner proving that the report of respondent No.3 as to the credited amount of cheques in petitioner's account, was false, was relevant. This record is stated to have been produced before the inquiry committee and also before respondent No.2. It is observed that in the application to summon Farrukh Ahmad Awan, Ex-Secretary, no reason whatsoever had been given nor any

fact which the petitioner intended to prove through his statement was disclosed. Under Article 131 of Qanoon-e-Shahadat Order, 1984 when either party proposes to give evidence of any fact, the court can ask the party proposing to give the evidence as to what manner the alleged fact, if proved would be relevant; and the court will admit the evidence if it thinks that the facts if proved, would be relevant and not otherwise. Relevant part of Article 131 of Qanoon-e-Shahadat Order, 1984 is reproduced below for facility of reference:-

“131. Judge to decide as to admissibility of evidence.—(1) when either party proposes to give evidence of any fact, the Judge may ask the party proposing to give the evidence in what manner the alleged fact, if proved would be relevant; and the Judge shall admit the evidence if he thinks that the fact, if proved, would be relevant and not otherwise.

(2) ...

(3) ...”

In the light of the principles contained in Article 131(1) *ibid* respondent No.2 was justified to inquire as to the relevance of the witness for proving any material fact which having neither been disclosed in the application nor ever explained in the course of hearing of the application, the request was rightly declined. The petitioner’s subsequent stance that the context of certain documents justified the presence of the witness too has no legal substance for the reason that it has not been disputed that all the documents have already been made the part of the record of the case. Even otherwise the petitioner has not been able to show the relevancy of the witness in context with alleged documents. As observed above the substantial questions to be decided were as to whether respondent No.3 had misconducted by withholding concealment in his report; whether he

incorrectly reported in league with the contractor that the payment had been credited in petitioner's account; whether the intention was to save the contractor from criminal prosecution; and whether all these facts would constitute misconduct so as to attract the penalty of dismissal. For the resolution of these questions, material evidence was the record of the petitioner containing the report of respondent No.3 as well as record of the dishonored cheques with the bank or with petitioner. There was hardly any justification to unnecessarily linger on the trial by introducing irrelevant evidence. Be that it may, the order passed by respondent No.2 does not suffer from any error of law. Petitioner, as stated by counsel for respondent No.3, has already produced the officials in evidence; no prejudice as such is likely to cause. The revisional court therefore rightly declined interference.

12. For the reasons above, this Constitutional petition being without substance is **dismissed**.

(RASAAL HASAN SYED)
JUDGE

Approved for reporting

Judge